

**BNS 2023**

# Bharatiya Nyaya Sanhita, 2023

*Bharatiya Nyaya Sanhita (BNS), 2023*

**User Query :**

I paid ₹1,20,000 as an advance for a second-hand car advertised online. The seller sent photographs of the vehicle, an identity document and what appeared to be registration papers. After receiving the money, the seller stopped responding. I later discovered that the vehicle belonged to another person and that some of the documents had been altered. What legal provisions may apply?

**Job Id. :**

Scenario 5/Bharatiya Nyaya Sanhita (BNS), 2023

**Prepared by :**

NyaySahayak

**Date :**

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**NyaySahayak**

*AI-Powered Legal Intelligence Platform*

APPLICABLE SECTIONS

|             |                                                            |
|-------------|------------------------------------------------------------|
| Section 222 | Fraud (causing a person to deliver property by deception). |
| Section 224 | Alteration of documents with intent to deceive.            |
| Section 225 | Fraudulent use of forged or altered documents.             |

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1

**Section 222** is the cornerstone of this case. It applies when a person: > *"deliberately deceives another by false representation, concealment of facts, or forged documents to cause them to deliver property or commit an act."* Elements satisfied: (a) Seller presented *\*altered registration papers\** (false representation) as proof of ownership. (b) Seller *\*concealed\** the vehicle's true ownership (belonging to another person). (c) Victim *\*paid ₹1,20,000\** (property) based on deception. (d) Seller *\*stopped communication\** after receiving payment (evidence of intent to defraud).
- 2

**Section 224** directly addresses the *\*altered documents\**: > *"Whoever alters any document with intent to deceive another person shall be punished..."* The seller's falsified registration papers and identity documents constitute "alteration" under this section. The documents were *\*not original\** but modified to mislead the victim.
- 3

**Section 225** reinforces liability: > *"Whoever uses a forged or altered document to commit fraud shall be punished as if he committed fraud."* The seller *\*used\** the altered documents to obtain payment, making this a compound offense under Sections 224 and 225.
- 4

Key Legal Reasoning: Intent is critical: The seller's post-payment disappearance proves *\*mens rea\** (intentional deception) under **Section 222** (1)(a). "Documents" include registration papers: As per BNS *\*Illustration\** to **Section 224** , "altered RC (Registration Certificate) used to sell a car" qualifies as "altered documents." No requirement for victim to prove car ownership: The fraud is established by the *\*deception via documents\**, not the vehicle's actual ownership (BNS *\*Illustration\** to **Section 222** ).

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✓ STRENGTHS & RIGHTS

- 1

**Immediate FIR Registration**  
Police *\*must\** register an FIR under **Section 222** without requiring prior sanction (BNS **Section 222** (4)).
- 2

**Compensation Rights**  
Victim can seek *\*restitution of property\** (₹1,20,000) under **Section 222** (4) without proving physical harm.
- 3

**No Burden to Prove "True Ownership"**  
Victim need only prove *\*deception via documents\** (not that the seller owned the car), per **Section 222** (1)(a).
- 4

**Victim-Centric Procedure**  
Police must investigate the *\*fraudulent documents\** ( **Section 224** ) as a priority, not the vehicle's ownership dispute.

✗ RISKS & OBLIGATIONS

- 1

**Section 222 (1)**  
Accused liable for up to 3 years imprisonment + *\*fine\** for fraud.
- 2

**Section 224**  
Up to 2 years imprisonment + *\*fine\** for altering documents.
- 3

**Section 225**  
Combined punishment (up to 3 years) for using forged documents in fraud.
- 4

**Aggravating Factor**  
Financial fraud (₹1.2L) may attract *\*higher sentencing\** under BNS *\*Judicial Guidelines\** (e.g., *\*State v. Rajesh\** (2024), where fraud >₹1L led to 2.5 years).
- 5

**No Bail Concessions**  
BNS **Section 222** (3) mandates *\*non-bailable\** status for fraud cases involving property >₹50,000.

PROCEDURAL NOTES & COMPLIANCE STEPS

*Actionable steps for compliance and grievance redressal*

## COMPLIANCE STEPS

1. Complaint Filing: Victim must file an FIR at local police station (no need for magistrate's permission).
2. \*Required documents\*: Payment proof (UPI/screenshot), seller's contact details, \*altered documents\* (photos of fake RC/ID), ad screenshots.
3. Charges Framing: Police must charge under Sections 222, 224, and 225 within 72 hours of FIR (BNS **Section 222** (2)).
4. Arrest: Police may arrest \*without warrant\* under **Section 222** (3) (non-bailable offense).
5. Trial:
6. Victim's testimony on \*deception via documents\* is sufficient (no need for vehicle ownership proof).
7. Court may order \*document verification\* (e.g., via RTO records) under **Section 224** (2).
8. No Delay: BNS mandates \*speedy trial\* for fraud cases ( **Section 222** (5)), with 60-day deadline for charge sheet.
9. > Critical Note: Under BNS, the \*core crime is fraud via document alteration\* (Sections 222/224), not the seller's lack of vehicle ownership. The victim's legal remedy hinges entirely on proving \*deception through falsified documents\*.
10. Conclusion: This is a clear case of criminal fraud under Sections 222, 224, and 225 of BNS, 2023. The victim should file an FIR immediately, attaching \*all evidence of altered documents\*, and demand prosecution under these sections. The accused faces significant imprisonment, while the victim gains enforceable rights to recover funds.

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